

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1276

By: Caldwell (Chad)

AS INTRODUCED

An Act relating to schools; requiring district boards of education to adopt a policy prohibiting student cell phone and smartwatch use under certain circumstances; requiring exceptions for emergencies; allowing board approval to opt out; requiring annual approval of opt out policies; defining terms; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-162 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Before the start of the 2025-2026 school year, each school district board of education shall adopt a policy to prohibit the use of cell phones and smartwatches by students enrolled in the district during the entirety of the school day and while present on school grounds.

B. District policies described in subsection A of this section shall incorporate provisions for emergency use including, but not

1 limited to, use to support medical issues documented by a licensed
2 medical professional.

3 C. Notwithstanding subsection A of this section, a school
4 district board of education may vote to adopt a policy allowing
5 student cell phone or smartwatch usage during the school day. Any
6 such policy shall be reviewed and approved by the district board on
7 an annual basis.

8 D. For purposes of this section:

9 1. "Cell phone" means a portable wireless telephone device that
10 is designed to send or receive transmissions through a cellular
11 radiotelephone service;

12 2. "School day" means the entirety of the day from the first
13 bell indicating the beginning of classroom instruction through the
14 final bell indicating the end of classroom instruction; and

15 3. "Smartwatch" means a wearable electronic device, designed to
16 be worn on the wrist, featuring functionalities such as
17 notifications and app support.

18 SECTION 2. This act shall become effective July 1, 2025.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

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24 60-1-10157 SW 01/14/25